

23SMCV02600 23SMCV02600

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-09

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The court's question is this. It seems like real money is paid on the individual claim, which is fine. But the

court remains concerned about the PAGA issue.

The court is still worried as to whether plaintiff was able to establish even a single material violation as to anyone other than the named plaintiff. That is not a reason to

reject the settlement; if defendant wants to pay this amount anyway, that is not as much the court's problem. The

more significant issue to the court is the fee being charged given that there does not appear to be a real material violation anywhere. The court might be misperceiving what has been shown. But so far as the court

recalls, there is evidence of the midnight time cards, but plaintiff was unable to point to a single instance where this resulted in any loss of pay to any

PAGA member other than the one minute between 11:59 pm and midnight. For someone making, say, \$30/hour, that is 50 cents per shift. The court is troubled

about that. As to all of the other

alleged misconduct, the court is not aware of any evidence that any of it actually happened. There are no other

declarations from anyone other than plaintiff that people were not given lunches or rest periods. All of that

said, the court is inclined to award fees, but not at the high percentage sought by plaintiff's counsel. The court

will award plaintiff's counsel a 1/3 fee, but no more than that. The balance gets added to the payouts to the other parties. In all other respects,

the court is inclined to APPROVE the settlement.